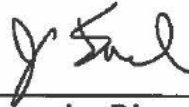


FIRST ENDORSEMENT

Executive Director, Civilian Complaint Review Board to Deputy Commissioner Amy J. Litwin, Department Advocate's Office, March 16, 2023. Contents noted. Recommend approval of the negotiated plea agreement in DADS No. 2021-23993 against Police Officer Johnny Marquez, Tax Registry No. 960876. The case was conferenced on February 23, 2023, before Deputy Commissioner of Trials Paul Gamble who approved the negotiated penalty of a Command Discipline-B and a forfeiture of Ten (10) vacation days, after a guilty plea.



Executive Director
New York City Civilian Complaint Review Board

DISAPPROVED

OCT 04 2023

EDWARD A. CABAN
POLICE COMMISSIONER



DISPOSITION OF CHARGES
PD 468-142(Rev. 8-89)-2

CASE NO.
2021-23993

BOOK & PAGE NO.
Page 1 of 1

PERSONNEL ORDER NO.

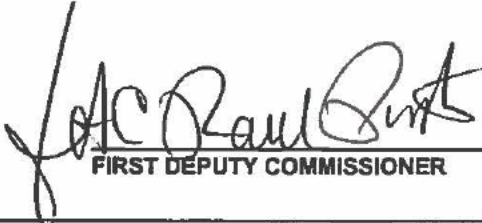
RANK/TITLE POM	SURNAME, MARQUEZ	FIRST JOHNNY	M.I. R	COMMAND SOD STRAT RESP GRP 3 BKLYN
SHIELD NO. 13959	TAX REGISTRY NO. 960876	SOCIAL SECURITY NO.		DATE APPOINTED 01/06/2016

RANK/NAME OF COMPLAINANT	COMMAND
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DATE OF CHARGES	DATE TRIAL COMMENCED	DATE TRIAL CONCLUDED
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TRIAL COMMISSIONER

SPECIFICATION	DISPOSITION	RECOMMENDED PENALTY PLEA [X] TRIAL []
1 . Police Officer Johnny Marquez, on or about May 30, 2020, at approximately 1700, while assigned to SRG 3 and on duty, in the vicinity of Bedford Avenue and Tilden Avenue, Kings County, wrongfully used force, in that he struck an individual with a baton without police necessity.	DISMISSED	B - COMMAND DISCIPLINE .00 - It is recommended that the Charges and Specifications be dismissed and that the matter be remanded to the Respondents command for imposition of a Schedule B Command Discipline with the forfeiture of the amount of vacation days as indicated. VACATION DAYS 10.00 - It is recommended that the Respondent forfeit the amount of vacation days as indicated.
2 . Police Officer Johnny Marquez, on or about November 30, 2020, at approximately 1015, while assigned to SRG 3 and on duty, in the vicinity of 100 Church Street, New York County, provided an inaccurate statement to CCRB in that he denied striking an individual with a baton.	DISMISSED	


FIRST DEPUTY COMMISSIONER

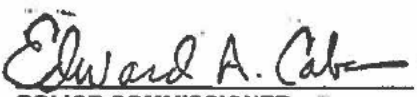
6/16/23
DATE

POLICE COMMISSIONER'S APPROVAL

☐ Approved

☒ Disapproved

☐ Other Action (Describe)


POLICE COMMISSIONER

10/4/23
DATE



POLICE DEPARTMENT

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th floor
New York, NY 10007

September 25, 2023

Re: CCRB Case No. 202003797 (Incident Date: May 30, 2020) involving Police Officer Johnny Marquez, Tax No. 960876 (DADS No. 2021-23993)

Dear Mr. Darche:

The Police Commissioner has reviewed the Civilian Complaint Review Board's (CCRB) recommended penalty regarding the substantiated allegations against Police Officer Johnny Marquez and determined that the actions of Police Officer Marquez do not warrant discipline.

CCRB alleged, that on May 30, 2020, Police Officer Marquez struck an individual with a baton and then on November 30, 2020, made inaccurate statements to CCRB when he denied doing so. The individual allegedly struck was never identified but a video was provided that depicted a rear angle of the alleged strike. Although Police Officer Marquez can be seen lifting his baton and swinging it toward the individual, the footage is from another officer's BWC several feet away. Due to this, and the fact he was not facing the BWC capturing the incident, it is difficult to discern whether or not Police Officer Marquez actually made contact with the individual. In light of this, and in the absence of any independent evidence to suggest otherwise, it is the Police Commissioner's determination that it cannot be proven that Police Officer Marquez struck the individual with a baton.

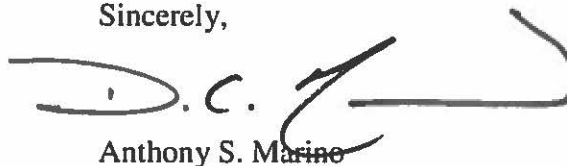
The Police Commissioner has determined since it cannot be proven that Police Officer Marquez struck the individual with the baton, his statement that he did not strike the individual with the baton is not an inaccurate statement. In CCRB's investigative report it is mentioned that the BWC established Police Officer Marquez struck the individual with the baton. The Police Commissioner disagrees with this conclusion.

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Website: <http://nyc.gov/nypd>

Therefore, the Police Commissioner intends to dismiss the charges and specifications in this matter and Police Officer Marquez will receive no disciplinary action.

Sincerely,

A handwritten signature in dark ink, appearing to read 'D.C.' followed by a stylized flourish.

Anthony S. Marino
Deputy Chief
Commanding Officer
Police Commissioner's Office

cc: Stuart London, Esq.



ERIC L. ADAMS
MAYOR

CIVILIAN COMPLAINT REVIEW BOARD
100 CHURCH STREET 10th FLOOR
NEW YORK, NEW YORK 10007 ♦ TELEPHONE (212) 912-7235
www.nyc.gov/ccrb



ARVA RICE
INTERIM CHAIR

October 3, 2023

The Honorable Edward Caban
Police Commissioner
New York City Police Department
One Police Plaza
New York, NY 10038

Re: CCRB Case No. 202003797 (Incident Date: May 30, 2020) involving Police Officer Johnny Marquez, Tax No. 960876, (DADS No. 2021-23993)

Dear Commissioner Caban:

I am writing in response to the letter from Deputy Chief Anthony S. Marino, dated September 25, 2023, informing the Civilian Complaint Review Board (hereinafter referred to as “CCRB”) of your intent to dismiss the Charges and Specifications in these matters. Pursuant to Paragraph 6 of the April 2, 2012, Memorandum of Understanding between CCRB and the New York City Police Department (hereinafter referred to as the “MOU”), I am responding to Deputy Chief Marino’s notification.

Deputy Chief Marino stated that after reviewing the recommendation of CCRB, you determined that since it cannot be proven that Police Officer Marquez struck the individual with the baton, his statement that he did not strike the individual with the baton is not an inaccurate statement. In CCRB’s investigative report it is mentioned that the BWC established Police Officer Marquez struck the individual with the baton. The Police Commissioner disagrees with this conclusion. As such, based on that determination, you intend to dismiss the Charges and Specifications and impose no disciplinary action against Police Officer Marquez. CCRB disagrees with your recommendation.

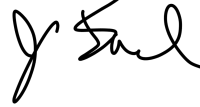
The BWC video from Police Officer Owens showed that Police Officer Marquez engaged Individual 2 beginning at the 4:32 minute-mark of the player’s timestamp. Individual 2 appeared to be wearing a white t-shirt, khaki pants, a red and black bicycle helmet, clear goggles, and a black hygienic facemask. Individual 2 held a skateboard lengthwise against his chest. Individual 2 was walking backwards away from the officers when Police Officer Marquez ran toward Individual 2. At 4:37, Police Officer Marquez raised his baton up near his left ear and swung the baton with one hand across his body striking Individual 2. The baton appeared to make contact with Individual 2’s upper body, head, or the skateboard, which Individual 2 kept at his chest. At 4:38, Police Officer Marquez swung his baton at Individual 2 again in the same manner as the first. Police Officer Marquez did not appear to make contact with Individual 2 the second time. Individual 2 ran away with the skateboard, and Police Officer Marquez did not pursue them.

After viewing Police Officer Owen’s BWC video, Police Officer Marquez denied striking Individual. Rather, Police Officer Marquez stated that he reached for the skateboard with one hand while simultaneously attempted to push Individual 2 away with the other hand holding his baton. Police Officer Marquez maintained that he did not make physical contact with Individual 2.

As stated above, Police Officer Marquez's testimony is inaccurate based on the BWC video from Police Officer Owens.

Please note the negotiated penalty was one mandated by the Disciplinary Matrix, as the CCRB took into account the nature of the incident when choosing the penalty. Additionally, this negotiated penalty was accepted by ADCT Paul Gamble during the plea conference held on February 23, 2023. While the CCRB recognizes that the Police Commissioner is the final arbiter regarding disciplinary actions against members of service, based upon the foregoing, CCRB requests that the negotiated penalty of a forfeiture of 10 vacation days be imposed.

Respectfully submitted,

A handwritten signature in black ink, appearing to read 'J. Darche', written over a horizontal line.

Jonathan Darche
Executive Director
NYC Civilian Complaint Review Board

Cc: Stuart London, Esq.